

SENATE No. 2940

Senate, January 29, 2026 -- Text of the Senate amendment to the House Bill relative to teacher preparation and student literacy (House, No. 4683) (being the text of Senate, No. 2924, printed as amended)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. The first sentence of the fifth paragraph of section 55A of chapter 15 of the
2 General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out
3 clauses (6) and (7) and inserting in place thereof the following 3 clauses:- (6) evaluate the
4 alignment of literacy instructional materials and curricula with department-recommended
5 evidence-based literacy instruction and high-quality curricula, as defined in section 1E ½ of
6 chapter 69; (7) review the progress of overall student achievement; and (8) evaluate student
7 performance, school and district management, overall district governance and any other areas
8 deemed necessary by the office.

9 SECTION 2. Chapter 29 of the General Laws is hereby amended by inserting after
10 section 2NNNNNN the following section:-

11 Section 2OOOOOO. (a) There shall be established and set up on the books of the
12 commonwealth a separate, non-budgeted special revenue fund known as the Early Literacy Fund,
13 which shall be administered by the secretary of education. The fund shall be credited with: (i)
14 appropriations or other money authorized or transferred by the general court and specifically

designated to be credited to the fund; (ii) funds from public and private sources including, but not limited to, gifts, grants and donations; and (iii) any interest earned on such money.

(b) Amounts credited to the fund shall be expended, without further appropriation, to: (i) develop a free, complete high-quality curriculum for kindergarten through grade 3 that meets frameworks established in section 1E of chapter 69; (ii) implement section 1E ½ of said chapter 69; and (iii) provide grants to school districts to support: (1) updating curricula to meet the curriculum frameworks established in said section 1E ½ of said chapter 69; (2) purchasing materials related to such curricula; (3) providing professional development to educators to support implementation of the new curricula; and (4) meeting the reporting and assessment requirements established in sections 57A to 57C, inclusive, of chapter 71. The department shall create and maintain grant eligibility and application criteria for the distribution of the grant funds pursuant to clause (iii) of the first sentence; provided, however, that the criteria shall prioritize districts that are not in substantial compliance with such requirements established in said section 1E ½ of said chapter 69 at the time of application and shall prioritize achieving geographic and funding equity; provided further, that the department shall hold at least 1 hearing in western Massachusetts prior to creating such criteria; and provided further, that the department shall provide technical assistance for grant applications for districts that are eligible for funding under item 7061-9813 of section 2 of chapter 9 of the acts of 2025.

(c) Any unexpended balance in the fund at the end of a fiscal year shall remain available for expenditure in subsequent fiscal years.

(d) Annually, not later than December 31, the department shall submit a report on the receipts and expenditures of the fund and file the report with the clerks of the senate and the

house of representatives, the senate and house committees on ways and means and the joint committee on education. The department shall make the report publicly available on the department's website.

SECTION 3. Chapter 69 of the General Laws is hereby amended by inserting after section 1E the following 2 sections:-

Section 1E ½. (a) As used in this section and section 1E ¾, the following words shall have the following meanings unless the context clearly requires otherwise:

“Evidence-based literacy instruction”, literacy instruction that: (i) is based on methods backed by scientific research; and (ii) has a demonstrated record of success in increasing student competency in reading ability, vocabulary, oral language and comprehension through well-designed and well-implemented studies to produce measurable and positive effects on student learning outcomes.

“Five research-based areas in reading instruction”, phonemic awareness, phonics, fluency, vocabulary and comprehension; provided, however, that comprehension shall include oral reading, oral communication skills and reading comprehension.

“High-quality curriculum”, a curriculum reviewed and approved by the department.

(b) A district shall select a high-quality curriculum to meet the curriculum frameworks under section 1E for kindergarten through grade 3 literacy that: (i) includes instruction in the five research-based areas in reading instruction and oral language development; and (ii) utilizes and is based upon evidence-based literacy instruction.

(c)(1) A district may apply for and the department may grant a waiver for the district to use a kindergarten through grade 3 literacy instruction curriculum that does not appear on the department's list of high-quality curricula and that has not already been reviewed by the department; provided, however, that any such literacy instruction curriculum shall utilize and be based on evidence-based literacy instruction and meet quality standards determined by the department.

(2) A waiver granted pursuant to this subsection may be approved for a period of not more than 5 years; provided, however, that the department may approve the renewal of such waiver if the district continues to utilize evidence-based literacy instruction and meet quality standards as determined by the department. A district shall report to the department during the waiver period any student data as requested by the department.

(3) A district that receives a waiver under this subsection shall publicly post to its website any report submitted to the department with information required pursuant to paragraph (2) and curriculum samples.

(4) The department may audit waivers approved pursuant to this subsection at any time. Any audit shall include, but not be limited to, a comprehensive review of the: (i) curriculum materials; (ii) instructional documentation; and (iii) instructional practices in the classroom.

(5) The department may rescind approval of a waiver approved pursuant to this subsection based on audit findings before the expiration of the waiver; provided, however, that if a waiver is rescinded, the department shall assist the district with implementing a high-quality curriculum.

(6) The department shall provide a denial of a waiver requested pursuant to this subsection in writing to the district that applied for the waiver and provide an opportunity for appeal.

(d) The department shall maintain and make available to school districts a free, complete high-quality curriculum for kindergarten through grade 3 that meets frameworks under section 1E; provided, however, that such free, complete high-quality curriculum or a free curriculum certified pursuant to subsection (b) of section 1E $\frac{3}{4}$ shall meet any requirements under section 27C of chapter 29.

Section 1E $\frac{3}{4}$. (a) The department shall provide tools and resources to aid districts in providing professional development aligned with evidence-based literacy instruction for literacy teachers, special education teachers, paraprofessionals and reading specialists in kindergarten through grade 3.

(b) The department shall create and maintain: (i) a list of department-approved professional development programs and vendors aligned with evidence-based literacy instruction best practices; (ii) a set of online training modules available at no cost to all teachers that provide training on the foundational practices and pedagogy aligned with evidence-based literacy instruction best practices; and (iii) a list of high-quality curricula. The department shall update said lists and modules to account for developments in best practices and curriculum.

SECTION 4. Section 1S of said chapter 69, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 41, the words “and (J)” and inserting in place thereof the following words:- (J) implementing evidence-based literacy instruction; and (K).

SECTION 5. Said section 1S of said chapter 69, as so appearing, is hereby further amended by inserting after the word “subgroups”, in line 48, the following words:- ; and provided further, that the district plan shall address the implementation of and compliance with section 1E ½.

SECTION 6. Said section 1S of said chapter 69, as so appearing, is hereby further amended by adding the following 2 subsections:-

(h)(1) Annually, not later than August 15, the department shall identify a list of data requirements that each district shall report to the department related to curricula consistent with evidence-based literacy instruction under section 1E ½. The department shall make the list of data requirements publicly available on the department’s website.

(2) Annually, not later than October 31, each district shall report to the department the data required by the department pursuant to paragraph (1).

(i) Annually, not later than December 31, the department shall: (i) aggregate data collected from each district pursuant to subsection (h); (ii) prepare and publish a report on the aggregated data; and (iii) file the report with the clerks of the senate and the house of representatives, the senate and house committees on ways and means and the joint committee on education. The department shall make the report publicly available on the department’s website.

SECTION 7. Section 2 of chapter 70 of the General Laws, as so appearing, is hereby amended by inserting after the definition of “Equalized property valuation” the following definition:-

“Evidence-based literacy instruction”, as defined in section 1E ½ of chapter 69.

SECTION 8. Said section 2 of said chapter 70, as so appearing, is hereby further amended by inserting after the definition of “Excess effort” the following definition:-

“Five research-based areas in reading instruction”, as defined in section 1E ½ of chapter 69.

SECTION 9. Section 38G of chapter 71 of the General Laws, as so appearing, is hereby amended by inserting after the word “personnel”, in line 281, the following words:- ; provided, however, that policies and guidelines shall align with evidence-based literacy instruction for educator preparation programs to be approved by the commissioner.

SECTION 10. Said chapter 71 is hereby further amended by striking out section 57A, as so appearing, and inserting in place thereof the following section:-

Section 57A. Districts shall develop procedures or protocols to screen for students that demonstrate at least 1 potential indicator of a neurological learning disability including, but not limited to, dyslexia; provided, however, that the department of elementary and secondary education, in consultation with the department of early education and care, shall, subject to appropriation, issue guidelines to assist districts in developing such screening procedures or protocols and districts shall adhere to such guidelines when developing such procedures or protocols. Districts shall annually report to the department of elementary and secondary education on the procedures or protocols used for screening for risk of dyslexia including, but not limited to, evidence-based tools and assessments broken down by component skills for each grade level and timeframes for such assessments. The commissioner shall annually make publicly available on the department’s website data on which screening assessments are employed by each school district, including, but not limited to, kindergarten through grade 3

literacy screening assessments and whether the screening assessments utilized are approved by the department.

SECTION 11. Said chapter 71 is hereby further amended by inserting after section 57A the following 2 sections:-

Section 57B. (a) For the purposes of this section and section 57C, the term “screening assessments” shall mean tools and assessments that can be used to identify students at risk for poor academic outcomes as determined by the department.

(b) The department of elementary and secondary education, in consultation with the department of early education and care, shall issue regulations requiring districts to adopt screening procedures and protocols for reading ability and progress in literacy skills for all students in kindergarten through grade 3 using screening assessments. The regulations shall include a threshold at which a student is determined to be significantly below the grade level benchmark; provided, however, that said screening procedures and protocols shall account for the needs of English language learners. The commissioner shall annually make publicly available on the department’s website data on which screening assessments are employed by each district to conduct reading screening.

Section 57C. (a) Each district shall assess each student’s reading ability and progress in literacy skills from kindergarten through at least grade 3, using a screening assessment approved by the department of elementary and secondary education, at such intervals as determined by the commissioner but in no event less than twice per school year. The department shall update approved screening assessments to remain current with best practices and evidence-based assessments. The screening assessment of the student’s reading ability and progress shall be

consistent with section 2 of chapter 71B, the department's dyslexia guidelines issued pursuant to section 57A and literacy guidelines issued pursuant to section 57B.

(b) If a screening assessment determines that a student is significantly below relevant grade level benchmarks in specific literacy skills, the district shall determine which actions within the general education program will meet the student's needs, including, but not limited to, differentiated or supplementary evidence-based reading instruction and ongoing monitoring of progress. Not later than 30 days after a screening result that determines that a student is significantly below the relevant grade level benchmark, the district shall inform the student's parent or guardian of the screening results and the school's response on what actions within the general education program will meet the student's needs and shall offer the student's parent or guardian the opportunity for a follow-up discussion.

SECTION 12. Notwithstanding any general or special law to the contrary, in fiscal year 2026, the comptroller shall transfer \$25,000,000 from the Education and Transportation Innovation and Capital Fund established in section 2DDDDDD of chapter 29 of the General Laws to the Early Literacy Fund established in section 2OOOOOO of said chapter 29.

SECTION 13. The department of elementary and secondary education shall promulgate regulations as it deems necessary to implement this act and to ensure that high-quality curricula meet the needs of all students, including students with disabilities and English language learners.

SECTION 14. School districts shall begin reporting required pursuant to paragraph (2) of subsection (h) of section 1S of chapter 69 of the General Laws in the 2027-2028 school year.

SECTION 15. Not later than December 31, 2027, the department of elementary and secondary education shall make publicly available on the department's website the first report required pursuant to subsection (i) of section 1S of chapter 69 of the General Laws.

SECTION 16. Prior to the beginning of the 2027-2028 school year, each school district shall: (i) adopt high-quality curriculum for kindergarten through grade 3 literacy that meets the curriculum frameworks pursuant to section 1E of chapter 69 of the General Laws; or (ii) have an approved curriculum waiver from the department of elementary and secondary education pursuant to said section 1E ½ of said chapter 69.

SECTION 17. Not later than 6 months following passage of this act, the department of elementary and secondary education shall: (i) develop the list of high-quality curricula for kindergarten through grade 3 required pursuant to subsection (b) of section 1E ¾ of chapter 69 of the General Laws; and (ii) notify school districts that the free, complete high-quality curriculum for kindergarten through grade 3 required pursuant to subsection (d) of section 1E ½ of said chapter 69 will be available prior to the 2027-2028 school year, including, but not limited to, the program components, scope, sequence, design specification and core topics and texts on said curriculum.